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|     |                                                                      | <p>Further, Ford's argument under the economic loss rule (the "ELR") fails here. <i>Rattagan</i> did not address claims of fraudulent inducement by concealment in the Song-Beverly context. (<i>Rattagan v. Uber Technologies, Inc.</i> (2024) 17 Cal.5th 1, 41, fn. 12.) In contrast, <i>Dhital v. Nissan North America, Inc.</i> (2022) 84 Cal.App.5th 828 does address such claims in this context. After <i>Rattagan</i> was decided, review of <i>Dhital</i> was dismissed. <i>Dhital</i> thus controls here. Under <i>Dhital</i>, fraudulent inducement by concealment claims are not barred by the ELR. (<i>Id.</i> at 843.) The Demurrer, to the extent it is based on the ELR, thus fails here.</p> <p>Where the Demurrer has been <b>SUSTAINED</b>, plaintiffs are granted 14 days leave to amend.</p> <p><i>Ford shall give notice.</i></p>                                                                                                                                                                                              |
| 11. | Richards v. General Motors, LLC<br>25-1469068                        | <p>Before the Court is the Demurrer filed by Defendant General Motors, LLC ("GM") on 2/19/26, directed to the First Amended Complaint which was belatedly filed by Plaintiffs Brad Richards and Ruth Preston ("Plaintiffs") on 4/16/26. The Demurrer is <b>OVERRULED</b>. The Demurrer is directed solely to the Fifth Cause of Action for Fraudulent Inducement- Concealment. But the FAC now adequately asserts that Plaintiffs purchased the subject vehicle from GM's authorized retail dealership. (FAC ¶ 9.) That is sufficient to allege a relationship requiring GM to disclose known defects. (See <i>Dhital v. Nissan North America, Inc.</i> (2022) 84 Cal.App.5th 828, 844.) The allegations as to the alleged defect in their vehicle (FAC ¶¶ 13, 14) adequately comport with their allegations as to the known "Transmission Defect" in these vehicles, under <i>Dhital</i>. The Demurrer is therefore <b>OVERRULED</b>.</p> <p>GM is to file its Answer within 10 days.</p> <p><i>Plaintiff is to give notice of this ruling.</i></p> |
| 12. | Waypoint Aviation Services v. Transcontinental Air LLC<br>25-1495879 | (Moot-FAC filed)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 13. | Soteropoulos v. FCA US LLC<br>25-1492568                             | (Moot-FAC filed)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 14. | Glickman v. Krolikowski<br>19-1049771                                | <p>Before the Court are the Demurrer and Motion to Strike filed on 12/15/25 by Defendants Charles Krolikowski and Newmeyer &amp; Dillion LLP ("Defendants"), directed to the Eighth Cause of Action in the Fourth Amended Complaint (the "Fourth AC") filed on 11/13/25 by Plaintiff William Glickman ("Plaintiff").</p> <p>The Demurrer is <b>OVERRULED</b>. The Demurrer asserts that the claim under <i>C.C.P. § 496</i> fails to state sufficient facts to support the cause of action. However, although not all commercial or consumer disputes alleging that a defendant obtained money or property through fraud, misrepresentation, or breach of a contractual promise will suffice, a claim is stated where facts are also alleged to infer careful planning and deliberation reflecting the requisite criminal intent. (<i>Siry Investment</i>,</p>                                                                                                                                                                                       |

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|     |  | <p><i>L.P. v. Farkhondehpour</i> (2022) 13 Cal.5th 333, 361-362; <i>Johnson v. Connie, LLC</i> (2025) 113 Cal.App.5th 850, 855-856.) Plaintiff alleges here that the Defendants repeatedly made knowingly false representations to Plaintiff to obtain fees, under circumstances reflecting careful planning, deliberation, and concealment, and thus showed criminal intent. (Fourth AC, ¶¶ 34, 36, 109-117, 130, 139-143, 189-193, and 369-371.) The claim is thus adequately pled to withstand Demurrer. Defendants' assertions that the claim lacks merit are beyond the scope of Demurrer.</p> <p>The Motion to Strike is <b>DENIED</b>. The motion asserts that the sums claimed as damages on the Eighth Cause of Action are grossly excessive. But Defendants have not shown that the dollar value for what was allegedly stolen is necessarily the only basis to claim actual damages here. (See <i>Citizens of Humanity, LLC v. Costco Wholesale Corp.</i> (2009) 171 Cal.App.4th 1, 18–19 [disapproved on other grounds in <i>Kwikset Corp. v. Sup. Court</i> (2011) 51 Cal.4th 310].) Whether the specific sums claimed as damages are justifiable is beyond the scope of the motion.</p> <p>Defendants are to file their Answer to the Fourth AC within 10 days.</p> <p><i>Plaintiff is to give notice of these rulings.</i></p> |
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